

# Sri V Nandakumar S/O G Vaidyalingam vs Smt M Indumathi W/O V Nandakumar on 10 June, 2011

**Author: Mohan Shantanagoudar**

**Bench: Mohan Shantanagoudar**

DATED THIS THE 10<sup>th</sup> DAY of JUNE 2011

BEFORE :

THE HON'BLE MR JUSTICE MOHAN SHANTANAGODAR 1

WRIT PETITION No.37211i.2oIéG I:(;r'4i»~\_l"C1:''

Between 2

V.Nandakumar

S/O g.vaidyalingam

Aged about 42 years,

Residing at No.25, V

5<sup>th</sup> Main, 7<sup>th</sup> crossg' H \_

'Sapthagiri" "

Krishnappa ' '

Ganganagar Ex\_tent\$'on,"' \_ \_ «\_

Bangalore=560(352.2. .. Petitioner

{ By SrE "Nagaiafi 8\$fEZ..fi% R:. [3E.E.f:r'5"E:rjcham! Advocates )

And :

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f 'Sm:..v:..in:..mm'Ea.thi ""

'V\_WjQ\*'v'\_..VNaVnd.a\$<.:mar

Exgéç\$, .a t;Ao,;3t.V\_3': \;.eéf;.%g's;

Residing at EKE»:1'8T38,

Cfo E~i.;;nisv:.amj;;«' Mudafiar

-3" Cre":3s,"'-Swarna Nagar,

«.fj;-V'a\_\_Robertsér}plet, K.G.F.,

'\_K\$3\$AAc3%€"~.f?\$St!'\$Ct. ., Respondent

€55 \.!.!.3avahar Saba, Advocate )

This Writ Petition is filed under Articles 226

the Constitution of India praying to quash the order passed by the Civil Judge (Sr.Dn.,) 8: Pri. .I.M.F.C., at "enfi. AiNo.1 filed by the respondent herein under" -E1e\$;t,i0h.,V2.5 sf' 2 V

the Hindu Marriage Act in M.C.No.31f'2oiO.dated.3Ci\$:.O.2.Gw10->é vide Annexure~F. This Writ Petition having been reserved 'c}'rc'ier';<fi 25'" May 2811, pronounced the :>\_i"de\_r' en:i:i'" .3\_tiii.e OR DE , The petitivooi?:\.\_ respondent.

(The parties€:ai:e- as husband and wife.) Section 13 of the Hindu (hereinafter referred to as 'the Act' forejisiheirt')Va\$;'a.inst4't.he husband for the relief of divorcecbn. certain allegations. The same is numbered 9/\$A;C;NEi5;3i/;fO1OiV' iiii "Statement of objections are filed hi; the main matter. The husband had T aisoEi44i\_Ved',i'~?¥'.:Cii\io.1256/2310 praying for divorce. Beth

-.fiyj'"Detitions .,aH\_fe pending consideration. ""T?f""-w' MA both the teamed advocates on the question interim maintenance, awarded %'5,\$VOO/- \_nie»:j'jine'n:tii.AVtn' the wife.

4. Section 24 of the act of maintenance pendenteViite\*. \_AF'ii|ai:\_iiA of Section 24 of the Act prima facie ::th"e\*v.a.rgti'h1ents of the learned ccsunsesi maintenance pendente lite ':ji.n7:fa'v'our of the wife on the appiivcatien..:fisied:ifigy t'he"-iivife""a"r1'd not otherwise. But, the iiega'i'it;}'ijf--tiheimpugned order wiii have to \_\_be tesi:edsi.byVi<e.e;5ingv:in mind the object with which the Act is enacted. There cannot be any dAisg:ut\_e<iti\*ia't.\_tne-object of a proceeding for maintenance 2 is tei:s4.reve'nt'}\$eerancy by compelliing the husband at the tesupport his wife or child unable to support \$\*: \_ets'eif='er itsei□The provision is net in the nature of "ii':\_t>en.e£ prexisien; eat, is eny inteneed fer the x□ enforcement of a duty, a default in which vagrancy. The real object is to provide food; and shelter te the deserted wife□and« provision enables the Cour't\_t\_o seelthat th'e'..Vi'n{:lig'i\*en't'lg spouse is put in a financial tlhellbarty concerned may 'eizidence in the case. The Court party is not handicapped all the relevant decision of the case because h\_isl -'T he Court is expected to conduct the""-p:4roc;eVedi'n\$;siileqtilitabily between the parties and caifi« \_'tal<e allV"st.e:p\_s\_\_\_Ac.onsistent with law to achieve its

--,\_1'ii:'oi\*d.\_er to obviate against the financial handioap of to a litigation, Section 24 is enacted. saizl□rovision is a socio-econorniC piece of The wife who is unable ta maintain herself it living separately from her husband during the V""t»».,;efendeny at matrimonial dispute ie the Cedrt has te be given a reasonable sum towards the\_\_\_"iritejri.rri-«V. maintenance. Simiiar is the case with a mine-r::cvhV'iirdi; K V' is not oniy the iegai duty, but a husband and the father, as the \_case"may be,\_ti:;.ihaini}ai"ri his wife and child. Keeping thiisroxbject the trial Court must have passed;..th<.e ir--hpg;:tj"ried,vi'o~rder in favour of the wife in order to see the. to maintain herself and to 1.

6. c;{"i'}est:i'orii:"arosebefore the Orissa High Court in the' case,\_orjjjV3'ULém' SAMANTARAY SMT. -vs. DHIRENDRA }"('LlMAvF?'\$}1□f}¢tNTARAY (AIR 2003 ORISSA I-'iT.:i'5»').5i\_\_\_'Aijh5.--."itheJsaidAvrriatter, an aimiication came to be 24 of the Hindu Marriage Act praying 'for ma<i.\_hte\_\_iariiee in her favour. However, she had not it""':v".4Ai;--.ra}<.ed\_\_\_ forrrrrzaihtenahce on behalf of minor chiici. The riigh Court has cohciuded that simply because i

Si'.VE€§i"i'8 orayer was not made in respect of maintenance a rriihor Chiidg the Court beiw ehoui□  
hat have KEV//3} refused the interim maintenance to the minor. 2 Court considering the age of the  
minor (6 looking to the facts and Circuméten€;e..§37.\_Tof7"

directed the opposite party ti: paiyA\_eertain.'¥2irin'eiint; .€>'fV" g interim  
maintenance.

The Division Beneheéf 'l'»'!,e't1rae'ti'igvFi--.\_\_\_Court in the case of cHA~pi2ji{A  
i(r:2;;YAKg;MAR ( 1995-1 L. W. 695) .+3:i:jrnii--eri~Situation; observed thus:

" We are" eise " £;§'\.'i'entire agreement with "view e>i',r2reSsed by the learned  
Judge in . \_tf:=e jtzdgmverit. The conjoint reading of V of the Act clearly shows that "  
'dispose! of the main ,z3et:'tion for ::i'?vr;;fee,""xft is open to the Cotirt to pass A.  
.3ppre;eriete orders for eiimeny or

--..V\_"m.;§!ntenenCe even without any proper epplictetfori. "

g//B

-g.\_ The Sivisien Bench of Madras High Court whiie ceelueihg Se has refied uph the earlier the  
very High Ceurt in the case ef Chandra Racine eiias Maheie!<shm:'Rej:1 ( 1995 t,zf4.;;;j;Vtt% "

7. Though the app¥i<;.eti\_en h;;r e'§'ing maintenance may be has chosen to grant an  
ordeetitf :t71ei.h'tenaneeVAwithout a formal appEicatienv'kee:pi\*he of the situation  
ahd:\_ 24 of the Act.

The Ceurft. so under the peculiar feete of the case. Moreover, both  
partiee¥..ereVVV'heVe:d=:€}n the question of interim :\_..-\*'rh.\_einteE;«:ehee  
thefoAfe'vth.e'Ceurt beiw and thereafter, the passed. Thus, it canhet be said that

4.\_the .'ihj':eugvhee"3..V\_order is passed witheut hetiee te the ~ j» ' hesba ed \_ 7-  
Z/it A10- tht overwhelming public interest requieres ~ interference, the court shoudf  
interfe.r\*e;i'?'..fj.. g ' The impugned order is passe'd.Vi<:eAe'p:in1g\*'-i\_::i object of  
the Legislature in Ve'nvga'z:.t>ing'V'Sect.ieri\_: the i' V Act. The same cannotruhe  
int'en'e'reVdi...with;"t=he;'i:igh the petitioner may be jusiitiifiedg the Act requires  
fiing for interim maintenance: Cionrts are meant for doing in the matter on hand  
andias this the impugned order is in consongancea efuthé oiajesct of Section 24 of the  
Act, no i\$"i;alied fer in the impugned order. Th'ei:'3..qtiantum of maintenance  
awarded by the beieésv cannot be said to be on the higher side  
i:§'a§;iVn,gj'g".--'regard te the fact that the husband is getting "i.V%':.\$1i?;.,€iOS/--  
per month. The ceupie is having a daughter and the said daughter is Eiving with the  
wife. Therefore, §/~«~../' / \\r /' 5!

-11, the amount of \$5,500/~ per month awarded by the C--'1f)\_LiI"t bestow towards interim alimony cannot be said the higher side.

Petitioners and accordingly, dismissed.

""I:rlc/